

IN THE HIGH COURT OF THE UNITED REPUBLIC OF TANZANIA

(DAR ES SALAAM DISTRICT REGISTRY)

AT DAR ES SALAAM

CIVIL CASE NO. 195 OF 2015

HASS PETROLEUM (T) LIMITED.....PLAINTIFF

VERSUS

NJAKE ENTERPRISES

AND OIL TRANSPORT LIMITED.....DEFENDANT

RULING

Date of last Order: 15/12/2020

Date of Ruling: 23/12/2020

MLYAMBINA, J.

Through the ruling of this Court dated 16th August, 2018 in *Civil Application No. 151 of 2013* involving **Paschal John Macha v. Access Bank Tanzania Ltd and Another**, the Court did pronounce itself that the requisite chain elements of data message is that; such data must be; **one**, generated; **two**, communicated; **three**, received or; **four**, stored by electronic magnetic optical or other means; **five**, must be in computer system; **six**, for transmission from one computer to another. Such pronouncement of the Court was reached after revisiting *Section 3 of the Electronic Transactions Act, 2015* which defines data message to mean:

Data generated, communicated received or stored by electronic, magnetic optical or other means in computer system or for transmission from one computer to another.

In this case, the Court will add that the mere creation of a document in a computer does not make it a data information otherwise as put by Counsel Adronicus Byamungu, every document in today's era even Judgement of the Court created in a computer instead of a hand writing will become computer generated document.

Besides, in order for a document to become a computer-generated document, it must be transacted electronically. There must be complex automation electronically so that a document is created. A mere imputing of information and printing it again on a document form does not make that document a computer generated.

The reason that has spurred this Court to come up with the above general observation are the two objection raised by the Defendant's Counsel Mr. Boniphace Joseph when PW1 (Hamis Diriye Abdi) craved leave of the Court to tender as exhibits documentation relating to invoice, delivery note, release order and a list of all transactions, loadings and other related

documents. Counsel Boniphace argued *inter alia* that the invoices listed below do not qualify to be admitted as exhibit because they contravene *Section 18 of the Electronic Transaction Act, 2015*:

Invoice 169 Dated 16/03/2011, Invoice 170 Dated 16/3/2011, Invoice 175 Dated 28/3/2011, Invoice, Invoice 193 dated 16/3/2011, Invoice 191 dated 16/3/2011, Invoice 192 dated 16/3/2011, Invoice 190 dated 16/3/2011, Invoice 260 dated 05/04/2011, Invoice 304 dated 19/4/2011, Invoice 305 dated 19/4/2011, Invoice 306 dated 19/4/2011, Invoice 307 dated 19/4/2011, Invoice 308 dated 19/4/2011, Invoice 536 dated 19/4/2011, Invoice 537 dated 19/4/2011, Invoice 539 dated 19/4/2011, Invoice 330 dated 05/5/2011, Invoice 336 dated 6/5/2011, Invoice 340 dated 9/5/2011, Invoice 341 dated 9/5/2011, Invoice 342 dated 9/5/2011, Invoice 344 dated 9/5/2011, Invoice 345 dated 11/5/2011, Invoice 966 undated, Invoice 965 dated 9/6/2011, Invoice 1302 dated 21/7/2011, Invoice 1318 dated 4/7/2011, Invoice 1326 dated 5/7/2011, Invoice 1403 dated 8/7/2011, Invoice 1403 dated 8/7/2011, Invoice 1432 dated 15/7/2011, Invoice 1456 dated 19/7/2011, Invoice 1455 dated 19/7/2011, Invoice 1456 dated 19/7/2011, Invoice ~~1470 dated 23/7/2011,~~ Invoice 1474 dated 28/7/2011,

Invoice 1492 dated 28/7/2011, Invoice 1491 dated 28/7/2011, Invoice 1490 dated 28/7/2011, HTF 1538 dated 18/8/2011, HTF 1563 dated 22/8/2011, HTF 1562 dated 22/8/2011, HTF 1591 dated 26/8/2011, HTF 1602 dated 27/8/2011, HTF 1601 dated 27/8/2011, HTF 1621 dated 5/9/2011, HTF 1620 dated 05/9/2011, HTF 1618 dated 05/9/2011, HTF 1641 dated 8/9/2011, HTF 1640 dated 8/9/2011, HTF 1399-400 dated 28/9/2011, Invoice 1395 dated 28/9/2011, Invoice 1714 dated 29/9/2011, HTF 1720 dated 30/9/2011, HTF 1731-32 dated 30/9/2011, HTF 1742 dated 03/10/2011, HTF 1734 dated 6/10/2011, Invoice 1735 dated 3/10/2011, HTF 1811-12 dated 6/10/2011, HTF 1959-60 dated 17/10/2011, HTF 197 dated 19/10/2011, HTF 2156 dated 26/10/2011, HTF 2151-52 dated 27/10/2011, HTF 0705-06-07 dated 8/11/2011, HTF 2021-23 dated 28/11/2011, HTF 2029 dated 29/11/2011, HTF 2044 dated 3/12/2011, HTF 2054 dated 5/12/2011, HTF 2067-68 dated 7/12/2011, HTF 2059-60 dated 7/12/2011, HTF 1013 dated 21/12/2011, HTF 1019 dated 22/12/2011, HTF 1020 dated 22/12/2011, HTF 2103 dated 28/12/2011, HTF 2135 dated 31/12/2011, HTF 1059 dated 4/01/2012, Invoice 1079 dated 09/1/2012, HTF 1101 dated 14/01/2012, HTF 1132 dated

18/01/2012, HTF 1131 dated 18/01/2012, HTF 1129 dated 18/01/2012, HTF 1206 dated 20/01/2012, HTF 1230 dated 17/01/2012, HTF 1229 dated 27/01/2012, HTF 1228 dated 27/01/2012, HTF 2792 dated 25/02/2012, HTF 2790 dated 25/02/2012, HTF 2791 dated 25/02/2012, HTF 2811 dated 29/02/2012, HTF 2810 dated 29/02/2012, HTF 2809 dated 29/02/2012, HTF 2813 dated 2/03/2012, HTF 2825 dated 6/3/2012, HTF 2836 dated 10/03/2012, HTF 2845 dated 12/3/2012, HTF 2844 dated 12/03/2012, HTF 3019 dated 15/03/2012, HTF 3027 dated 16/03/2012, HTF 3029 dated 19/03/2012, HTF 3062 dated 22/03/2012, HTF 3068 dated 23/03/2012, HTF 3092 dated 28/03/2012, HTF 3088 dated 28/03/2012, HTF 3123 dated 5/04/2012, Invoice 966 dated 13/4/2012, Invoice 964 dated 13/4/2012, Invoice 988 dated 20/4/2012, Invoice 987 dated 20/4/2012, Invoice 1046 dated 8/5/2012, Invoice 1045 dated 8/5/2012, Invoice 1073 dated 11/5/2012, Invoice 1071 dated 11/5/2012, HTY 0610 dated 9/6/2012, HTY 0611 dated 9/6/2012, HTF 3575 dated 7/8/2012, HTY2871 dated 9/8/2012, Invoice 1448 dated 11/8/2012, Invoice 1488 dated 15/8/2012, Invoice 1440 dated 11/8/2012, Invoice 1550 dated 24/8/2012, Invoice1637 dated 31/8/2012, HTF 2970 dated 4/10/2012,

Invoice 2545 dated 14/12/2012, ORD 2503 dated 14/12/2012, Invoice 3094 dated 28/2/2013, Invoice 3065 dated 25/2/2013, Invoice 2913 dated 6/2/2013, Invoice 3404 dated 19/04/2013, Invoice 1033 dated 4/5/2012.

According to Counsel Boniphace, the nature of the documents is computer generated print out. Counsel Boniphace cited the case of **Serengeti Breweries Ltd v. Breakpoint Outdoor Caterers Ltd**, Commercial Case No. 132 of 2014 High Court of Tanzania Commercial Division (unreported) in which the Court set out five conditions for admissibility of computer-generated documents:

1. There must be a certificate which identifies the electronic record containing the statement.
2. The certificate must describe the manner in which the electronic record was produced.
3. The certificate must furnish the particulars of the device involved in the production of that record.
4. The certificate must deal with the applicable condition under *Section 18 (2) of the Electronic Transaction Act*.
5. The certificate must be signed by a person occupying a responsible official position in relation to the operation of the relevant device and the person giving the certificate must

state in the certificate that the same is to the best of his knowledge and belief.

Further, it must be accompanied with the electronic record like computer print out to which the statement is sought to be given in evidences. It must also be not susceptible to tempering, alteration, transposition, excision etc. Counsel Boniphace went further to cite an Indian decision in the case of **Gopalkrishnan @Dileep v. State of Kerala and Another**, Criminal Appeal No. 1794 of 2019 at page 37-38 of which provides the same condition listed in **Serengeti Breweries Case**.

As correctly replied by Adronicus Byamungu, there is no good legal reason for this Court to refuse admitting the invoices because they are not computer-generated documents. As observed earlier, the imputation of the information and printing the same on the invoices does not make such invoices computer generated. I therefore find the objection by Counsel Boniphace to be of no value at this stage.

The second point of objection was that each particular electronic evidence accompanied with delivery note together with hand written notices are copies. These are documents numbered from 1404-966. In view of Counsel Boniphace, such documents

contravene the provisions of *Section 66 of Tanzania Evidence Act* (TEA). On that argument, Counsel Boniphace while replying, cited an Indian decision in the case of **Jagmail Singh and Others, v. Karamjit Singh and Others**, Civil Appeal No. 1889 of 2020 paragraph 14 page 9. In that decision the Indian Supreme Court interpreted *Section 65 of the Indian Evidence Act, 1872* which is parimaterial to *Section 66 of Tanzania Evidence Act (TEA), 1967*. He also cited the case of **Ramadhani Salum Kinyogo v. Tanroads and 2 Others**, High Court of Tanzania at Dar es Salaam, Land Case No. 18 of 2012 (unreported) page 3-4.

It was the submission of Counsel Boniphace that all the tendered secondary evidence does not qualify and should be rejected. As replied by Counsel Byamungu, the alleged documents that are photocopies are being admitted in writing by the Defendant under paragraph 4 (iii) of the Written Statement of Defence and in the Defendant's list of documents under item 1, 2 and 3. Therefore, such documents are admissible under *Section 67 (1) (b) of TEA*.

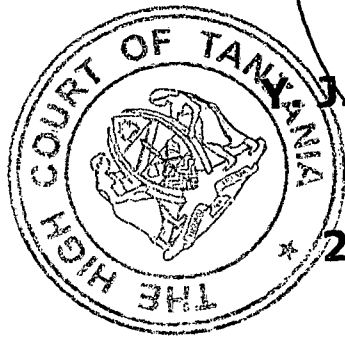
Earlier on, Counsel Boniphace raised valid objection on admissibility of the following documents:

1. The document titled loading to Janke. Such document is neither stamped nor signed.

2. Loading ticket dated 14th December, 2012. It is not part of the pleadings.
3. Marking purchasing order dated 14th December, 2012. It is not part of the pleadings.
4. Loading ticket dated 23rd August, 2012. It is not pleaded.
5. Marking purchasing order dated 23rd August, 2012. It is not pleaded.
6. Loading ticket dated 29th November, 2011. It is not pleaded.
7. The loading ticket dated 19th July, 2011 it is not pleaded.
8. The loading ticket, release order dated 19th July, 2011 for not being pleaded.
9. The loading ticket and the release order dated 8th July, 2011 for not being pleaded.
10. The loading ticket and release order dated 16th July, 2011 for not being pleaded.

Taking into consideration that there was no good reason offered by Counsel Byamungu as to why the Court should admit the afore ten listed unpleaded documents, I find such objection to have merits.

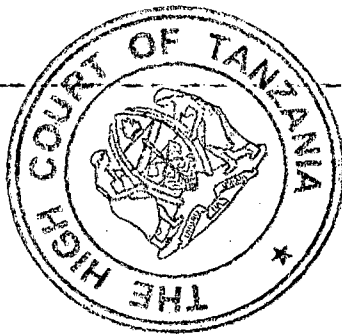
In the end, the objection is partly sustained to the extent explained above. Costs shall follow events.



J. MLYAMBINA
JUDGE

23/12/2020

Ruling delivered and dated 23rd December, 2020 in the presence of Counsel Adronicus Byamungu for the Plaintiff and Locken Kimaro, Treasurer of the Defendant's Company.



Y. J. MLYAMBINA
JUDGE

23/12/2020